SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 109 of 2022 (YEAR: 2021)

CORAM: SANJAY KISHAN KAUL, M.M. SUNDRESH

Aman Preet Singh
... Appellant(s) / Petitioner(s)
Versus
C.B.I.
... Respondent(s)

Acts Referred:	Code of Criminal Procedure, 1973
Sections:	Section 170 CrPC, Section 437 CrPC

JUDICIAL HEADNOTE & SUMMARY

Held that trial courts cannot mechanically insist on remanding an accused to custody merely because a chargesheet has been submitted under Section 170 CrPC if they cooperated throughout investigation.

RATIO DECIDENDI

The Court held that: Held that trial courts cannot mechanically insist on remanding an accused to custody merely because a chargesheet has been submitted under Section 170 CrPC if they cooperated throughout investigation. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Aman Preet Singh v. C.B.I. (Criminal Appeal No. 109 of 2022) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Code of Criminal Procedure, 1973, particularly Section 170 CrPC, Section 437 CrPC. Held that trial courts cannot mechanically insist on remanding an accused to custody merely because a chargesheet has been submitted under Section 170 CrPC if they cooperated throughout investigation.

OPERATIVE ORDER

ORDER: Decided